

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 11, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against DESPACHO TORRENTE, S.L.P. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 10/05/2023. The complaint is directed against DESPACHO TORRENTE, S.L.P. with NIF B22275648 (hereinafter, the respondent). The reasons for the complaint are as follows: the complainant's daughter is involved in damages caused to public facilities; the lawyer (respondent) representing the insurer of the damaged facility sent a letter to all individuals related to the damages, with the purpose of claiming payment for the damages caused. The letter contains the details of all individuals involved and includes the report issued by the municipal police. The report contains identifying data, ID numbers, addresses, and affiliations of the alleged responsible parties for the damages, as well as the various times when the damages occurred. The complainant's daughter is a transgender adolescent who has suffered threats on social media; therefore, both the minor and her parents have taken many precautions when providing her personal data. The complainant states that the respondent has improperly disseminated the minor's data, which could lead to serious repercussions in the future.

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Along with the complaint, the complainant submits the letter sent by the respondent and the report attached to it.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on 26/06/2023, the complaint was forwarded to the respondent/ALIAS for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on 07/07/2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on 17/07/2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

On 04/08/2023, the representative of the respondent responded to the request made, alleging, in summary: a brief history of the firm and a brief chronological exposition of the facts; possible causes of the incident; number of individuals affected by the data security breach; category of the data and possible affected individuals; actions taken to resolve the incident; security measures implemented and risk analysis; record of processing activities; request for the filing of the proceedings.

THIRD: On 10/08/2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The reported facts specify that the respondent is processing a claim for damages against a number of individuals, one of whom is a minor (the daughter of the claiming party); the respondent forwarded to all of them the written complaint along with other documents, including the police report in which the complete data of the individuals involved are listed, including those of the minor daughter: name and surname, ID number, date of birth, address, and those of the parents; data that is excessive, which could violate the regulations regarding the protection of personal data.

Article 58 of the GDPR, Powers, states:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, when appropriate, in a specific manner and within a specified time;

(...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case;

(...)"

Article 5, Principles relating to processing, of the GDPR establishes that:

"1. Personal data shall be:

(...)

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

(...)"

III

The documentation in the file provides clear indications that the respondent violated Article 5 of the GDPR, principles relating to processing, by forwarding a complaint for damages to the alleged responsible parties including a police report that contains the identifying data of the claimant's minor daughter: name and surname, ID number, date of birth, address, and the names of the parents.

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Article 5 of the GDPR refers to the general principles for data processing. In its paragraph c) it refers to the principle of data minimization, indicating that data must be “adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

If we examine the definition, we can deduce that only the personal data that will be processed can be collected, that is, those that are strictly necessary for the processing; that they may only be collected when they are to be processed and that they may only be used for the purpose for which they were collected, but not for any other objective.

The respondent has stated that “In our role as lawyers, we often have to file claims and lawsuits of a civil and criminal nature against a plurality of possible responsible parties, and in all those cases, the claims and lawsuits must be directed to all of them, identifying the possible authors and making the appropriate requests that may be joint or collective. This is what has been done in this case,” considering that there has been no violation of the security of personal data.

Also, Recital 39 states that: “...Personal data must be adequate, relevant and limited to what is necessary for the purposes for which they are processed.”

IV

The infringement attributed to the respondent is classified in Article 83.5 a) of the GDPR, which considers that the infringement of “the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7 and 9” is subject to sanction, in accordance with paragraph 5 of the aforementioned Article 83 of the cited Regulation, “with administrative fines of up to €20,000,000 or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount.”

The LOPDGDD in its Article 71, Infringements, states that: “Acts and conduct referred to in paragraphs 4, 5 and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

And in its Article 72, it considers for the purposes of prescription, that they are: “Infringements considered very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall prescribe after three years, particularly the following:

(...)

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)”

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V

In order to establish the administrative fine that is to be imposed, the provisions contained in Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

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- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed in this case for the infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR for which the respondent is held responsible, an initial assessment considers the following factors to be concurrent:

As aggravating circumstances:

- The nature and severity of the infringement, as it should not be forgotten that we are dealing with a violation of the data minimization principle, which is reproached in the GDPR with the utmost severity, considering that entities must adapt to the requirements contained in the regulation (Article 83.2.a) of the GDPR).
- The intent or negligence in the infringement; there is a serious lack of diligence in the entity's actions in transferring data that is considered excessive without proceeding to its minimization. Also connected

with the degree of diligence that the data controller is obliged to exercise in complying with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited, which, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on the rigor and exquisite care to comply with the legal provisions in this regard" (Article 83.2.b) of the GDPR).

- The activity of the allegedly infringing entity is linked to the processing of data from both customers and third parties. The respondent, given the nature of its activity, finds it essential to process personal data of both customers and third parties, so the significance of its conduct.

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The subject of this procedure is undeniable (Article 76.2.b) of the LOPDGDD in relation to Article 83.2.k).

In light of the aforementioned circumstances, it is deemed appropriate to impose a sanction of 10,000 euros on the respondent.

VI

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, which states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

Therefore, it would be considered appropriate to order the respondent to adjust the processing activities that are the subject of this procedure to the applicable regulations within a period of six months. This agreement outlines the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the specific types of procedures, mechanisms, or instruments for implementing them correspond to the sanctioned party, as they are the ones who fully understand their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Such measures could be specified, depending on the outcome of the instruction of the sanctioning procedure, to ensure compliance with the requirements of data protection regulations regarding the processing that is carried out, avoiding excessive and untimely data transfer in the processing of complaints and legal actions in which the alleged or possible authors are identified, by implementing the relevant measures.

It is warned that failure to comply with the order imposed by this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, and such conduct may lead to the initiation of an additional sanctioning administrative procedure.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against DESPACHO TORRENTE, S.L.P., with NIF B22275648, for the alleged infringement of Article 5.1.c), classified in Article 83.5.a) of the GDPR.

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SECOND: TO APPOINT Instructor B.B.B. and Secretary C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirector of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), and Article 127 letter b) of the RLOPD, the sanction that may correspond for the described infringement would be 10,000 euros (ten thousand euros), without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to DESPACHO TORRENTE, S.L.P., with NIF B22275648, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

It is also informed that, in accordance with the provisions of Article 85.1 LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement, which will entail a reduction of 20% of the sanction that may be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, in accordance with the provisions of Article 85.2 LPACAP, which will imply a reduction of 20% of the amount thereof, equivalent in this case to 2,000 euros. With the application of this reduction, the total sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the total amount of the sanction would be set at 6,000 euros.

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (8,000 euros or 6,000 euros), in accordance with the provisions of Article 85.2 referred to, we inform you that you must make the payment by depositing it into the restricted account No. ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

Furthermore, you must send the proof of payment to the General Sub-Directorate of Inspection to

continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On January 19, 2024, the respondent has proceeded to pay the sanction in the amount of 6,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

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FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement is confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or a pecuniary sanction can be imposed alongside a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

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3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative pathway against the sanction. The percentage of reduction provided in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202308617, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER DESPACHO TORRENTE, S.L.P. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution within 6 months from the date this resolution becomes firm and executable.

THIRD: TO NOTIFY this resolution to DESPACHO TORRENTE, S.L.P.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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